

5.	26CV0723	JONATHAN EFRIN GALLEGOS VS. PARK PLACE FINANCE, LLC ET AL
VACATE ENTRY OF DEFAULT / ATTORNEY DISQUALIFICATION		

Before the Court are two motions: 1) Motion to Vacate Entry of Default; and 2) Motion to Disqualify Counsel Susanne George.

VACATE ENTRY OF DEFAULT

The Notice does not comply with Local Rule 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

On August 5, 2026, Defendant, RJ Realty, LLC ("Defendant"), filed a Motion to Vacate Entry of Default. The Proof of Service filed on the same date indicates Plaintiff was served, but no service was effectuated on any co-defendant.

California Code of Civil Procedure § 1005(b) requires that all moving and supporting papers shall be served and filed at least 16 court days before the hearing, which includes service on counsel for all parties who have appeared in the action, whether or not the motion seeks relief against such parties. *Alford v. Superior Court* (2003) 29 Cal.4th 1033, 1048 [130 Cal.Rptr.2d 672, 683, 63 P.3d 228, 238].

As Defendant failed to serve all other co-defendants, service is deemed defective. The Court continues the matter to November 6, 2026, to allow for proper service.

ATTORNEY DISQUALIFICATION

This matter was continued from August 21, 2026, wherein the Court denied Plaintiff's motion for lack of service.

On August 21, 2026, Plaintiff, Jonathan Efrin Gallegos ("Plaintiff"), filed a Supplemental Declaration of Jonathan Efrin Gallegos Regarding Omitted File-Stamped Proof of Service, Address and Plaintiff's Notice of Errata and Submission of Omitted File-Stamped Proof of Service wherein Plaintiff notes the Proof of Service for the underlying motion on Defendants Maxton Builders and Valentin Razumovsky was filed on June 15, 2026. Plaintiff further advises he is arranging service of the original motion papers on all other Defendants.

The Court is not in receipt of the Proof of Service indicating all other Defendants were served. Plaintiff's motion is continued to November 6, 2026, to allow for proper service.

TENTATIVE RULING #5:

DEFENDANT'S MOTION TO VACATE ENTRY OF DEFAULT IS CONTINUED TO NOVEMBER 6, 2026, TO ALLOW FOR PROPER SERVICE.

PLAINTIFF'S MOTION TO DISQUALIFY COUNSEL SUSANNE GEORGE IS CONTINUED TO NOVEMBER 6, 2026, TO ALLOW FOR PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.